

**Important Information for Tentative Rulings and Hearings:**

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to [Department403@sftc.org](mailto:Department403@sftc.org).
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to [Department404@sftc.org](mailto:Department404@sftc.org).
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to [Department414@sftc.org](mailto:Department414@sftc.org).
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT  
UNIFIED FAMILY COURT  
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to [www.zoom.com/join](http://www.zoom.com/join) and follow the instructions below:
  - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
  - Click "Launch Meeting" then "Open zoom.us".
  - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
  - Enable your camera and click "Join".
  - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
  - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
  - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

**Department 403**  
**Meeting ID: 161 463 0304**  
**Passcode: 114482**

You can also log into your hearing **directly** using the link below:  
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

**Department 404**  
**Meeting ID: 161 305 3325**  
**Passcode: 282709**

You can also log into your hearing **directly** using the link below:  
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

**Department 414**  
**Meeting ID: 161 123 0725**  
**Passcode: 040696**

You can also log into your hearing **directly** using the link below:  
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

**PROHIBITION ON RECORDING:** **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

CHRISTOPHER ZUCCHI,

Petitioner

VS.

CHRISTINA ONOPA,

Respondent

) Case Number: FPT-24-378423

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

**TENTATIVE RULING**

**The parties are ordered to appear in person or via Zoom video at 9AM on 7/2/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.**

**A. Procedural History**

- 1) Petitioner Christopher Zucchi (Father) and Respondent Christina Onopa (Mother) have one minor child together, Jayden (DOB 2/15/21, age 5). Mother has sole legal and physical custody of Jayden, and Father has one hour or weekly supervised visits through Rally Family Visitation Services (Rally).
- 2) On 6/24/2025, the Court ordered the parties, who were on Rally's waiting list, to accept Rally's next available spot. The Court also ordered that Father shall have FaceTime calls with Jayden every Monday at 5pm for about 5 to 10 minutes.
- 3) On 1/8/2026, Father filed an update declaration stating Mother was interfering with his FaceTime calls. On 1/15/2026, the Court maintained the Rally order and modified the FaceTime call order

1 to have Father initiate the calls, for the calls to take place from 5PM to 5:15PM on Mondays, and  
2 for Father not to smoke during the calls.

- 3 4) On 4/6/2026, Father filed a declaration requesting unsupervised alternating weekends, from  
4 Friday through Sunday. He stated he had complied with all court orders, maintained regular and  
5 positive contact with Jayden, and had demonstrated his ability to provide a safe, stable, and  
6 supportive environment for him. Mother opposed the request stating she had received a  
7 threatening text from Father and was going to file a police report or seek a restraining order  
8 against Father. She stated that due to Father's substance abuse and unpredictability, she feared for  
9 her and Jayden's safety and had installed cameras outside of her home. Mother stated that Father  
10 was reaching out to her outside of the court-ordered schedule, including at night, with matters that  
11 are unrelated to the child.
- 12 5) At a 4/16/2026 hearing, Mother asked to have Father's visits suspended until he submitted to drug  
13 testing. Father responded that he agrees to drug test and will submit the test results to the Court.  
14 The Court ordered Father to submit to drug testing, maintained the Rally order, and ordered  
15 FaceTime calls on Mondays and Wednesdays at 5PM, with calls to be initiated by Father. The  
16 Court further ordered that the parties shall continue to communicate by text message only and  
17 that all communication shall be peaceful and respectful and only about visitation and FaceTime  
18 calls. The Court set a review hearing for 7/2/2026.
- 19 6) Both parties have filed update declarations, and Father has submitted a negative drug test result to  
20 the Court. In addition, the Court has received and reviewed a report from Rally summarizing  
21 Father's supervised visits.

## 22 **B. Findings and Orders**

- 23 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child  
24 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in  
25 violation to civil or criminal penalties, or both. The country of habitual residence of the minor  
26 child is the United States.
- 27 2) **The parties are ordered to appear in person or via Zoom video at 9AM on 7/2/2026 in**  
28 **Department 404.**
- 29

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

PETER COATS,

Petitioner

VS.

CICI VU,

Respondent

) Case Number: FPT-25-378655

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 11AM on 7/2/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

AURA DOLEA CASTANON,

Petitioner

VS.

HECTOR FIDENCIO PEREZ,

Respondent

) Case Number: FDI-19-791343

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

NOTICE OF MOTION AND MOTION TO BE RELIEVED AS COUNSEL-CIVIL; REQUEST FOR  
ORDER PROPERTY CONTROL, ENFORCEMENT OF FOAH TO SELL PROPERTY AND  
REQUEST FOR ELISOR TO SIGN

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the  
Court makes the following findings and orders:

**A. Procedural History**

- 1) Petitioner Aura Castanon (Wife) and Respondent Hector Perez (Husband) married on 9/11/2002  
and separated on 3/5/2019, for a marriage of 16 years and 5 months. The parties have one adult  
child, Franchesco (DOB: 12/12/2005, age 20). Wife is represented by attorney Kathleen Morgan.  
Husband is represented by attorney Crisostomo Ibarra.
- 2) No Judgment has been entered in this matter to date.
- 3) Wife's Request for Order Filed 3/17/2026
  - a. On 6/2/2025, per the Findings and Order After Hearing filed 6/11/2025, Judge Costin  
made a finding that the community property located at 1216 Newhall St. in San Francisco  
has a value of \$840,000. The Court made the following orders: "6) On or before 9/30/25,  
Husband shall pay to Wife a sum of \$135,828... In exchange, Wife shall quit-claim her  
right, title, and interest to the home to Husband. After the successful completion of these

1 transactions, Husband shall be entitled to exclusive possession of the home, and Husband  
2 shall be solely responsible for all mortgage payments on the home and shall hold Wife  
3 harmless therefrom... If Husband is unable to pay Wife the sum of \$135,828, then it is  
4 ordered that the home be placed on the market and sold. The net proceeds of the sale  
5 (after the payment of the outstanding mortgage, closing costs, and real estate commission  
6 fees) shall be equally divided between the parties.”

7 b. Now on for hearing is Wife’s Request for Order filed 3/17/2026. Wife states Husband has  
8 not paid the equalizing payment set forth in the Findings and Order After Hearing filed  
9 6/11/2025 and, to her knowledge, has not made any efforts to sell the Newhall residence.  
10 Wife also states Husband will not communicate with her. Wife states she contacted  
11 Husband’s attorney of record who told her he has also not been able to communicate with  
12 Husband. Wife asks the Court to:

- 13 i. Order Husband to prepare the Newhall residence for sale no later than May  
14 1, 2026;
- 15 ii. Order Husband to forthwith cooperate with realtor Mima Tin of Real Estate  
16 Broker Firm Keller Williams Santa Clara Valley, including executing a  
17 listing agreement, preparing the Newhall residence for sale, signing any and  
18 all documents necessary to prepare the property to be listed, to list the  
19 property, and sell the property within 48 hours of receipt of the documents;
- 20 iii. Permit Petitioner to file an ex parte Request for Order asking the Court to  
21 appoint the Clerk of the Court or Clerk’s Designee as elisor to sign any  
22 documents on Husband’s behalf if Husband fails to comply with signing any  
23 documents necessary to effectuate the orders set forth above;
- 24 iv. Order the proceeds of the sale of the home be divided equally pursuant to the  
25 Findings and Order After Hearing filed 6/11/2025; and
- 26 v. Award Wife \$3,000 in attorney's fees sanctions pursuant to Family Code  
27 section 271, payable from Husband's share of the net sale proceeds, because  
28 Wife was required to file this Request for Order.  
29

- 1 c. On 3/17/2026, Wife's attorney Kathleen Morgan filed a declaration. Ms. Morgan states  
2 she has been hired by Wife through the low-fee panel of the San Francisco Bar  
3 Association. Ms. Morgan states she is charging Wife \$250 per hour and she has spent 6  
4 hours on this motion to date. Ms. Morgan anticipates Wife will incur a total of \$3,000 in  
5 fees related to the instant motion.
- 6 d. On 3/18/2026, Wife filed a Memorandum in Support of Request for Order, citing Family  
7 Code section 271.
- 8 e. Per the Proof of Electronic Service filed 3/18/2026, Wife's Request for Order and related  
9 moving papers were emailed to Husband's attorney Crisostomo Ibarra on 3/18/2026.
- 10 f. At the prior 5/5/2026 hearing (per the Findings and Order After Hearing filed 6/1/2026),  
11 Mr. Ibarra informed the Court he was not notified of Wife's Request for Order. The  
12 Court found good cause to continue the hearing on Wife's 3/17/2026 Request for Order  
13 to 7/2/2026 and ordered Wife's attorney to serve the Request for Order on both Husband  
14 and Husband's attorney.
- 15 g. On 6/10/2026, Wife's attorney filed a Proof of Service indicating that Wife's Request for  
16 Order and related moving papers, the Tentative Ruling Instructions, and the Findings and  
17 Order After Hearing for the 5/5/2026 hearing date were mailed to Husband and  
18 Husband's attorney.
- 19 h. Husband has not filed a Responsive Declaration to Wife's 3/17/2026 Request for Order.
- 20 4. Husband's Attorney's Motion to be Relieved as Counsel filed 4/10/2026
- 21 a. On 4/10/2026, Husband's attorney Mr. Ibarra filed a Motion to be Relieved as Counsel.  
22 Mr. Ibarra states Husband has been unresponsive when discussing attorney compensation  
23 and that his firm has tried to contact Husband by telephone and email but to no avail. Mr.  
24 Ibarra states he served his motion on Husband by mail at Husband's last known address,  
25 and that Husband confirmed by telephone and email within the past 30 days that his  
26 address is current.
- 27 b. Mr. Ibarra's motion to be relieved as counsel was originally set to be heard on 6/16/2026.  
28 On 4/17/2026, Mr. Ibarra filed a Request to Reschedule Hearing. On 4/24/2026, the  
29 Court granted Mr. Ibarra's request to reschedule the hearing to 7/2/2026.



1 c. Per the Proofs of Service filed 4/17/2026, Mr. Ibarra's Motion to be Relieved as Counsel  
2 as well as the Order on Request to Reschedule Hearing (setting the 7/2/2026 hearing  
3 date) was emailed to Wife's attorney on 4/17/2026 and mailed to Husband on 4/17/2026.

4 d. Husband has not filed a response to Mr. Ibarra's motion to be relieved as counsel.

5 **B. Findings and Order**

- 6 1) Mr. Ibarra's request to be relieved as counsel is granted, effective immediately.
- 7 2) No later than 7/31/2026, Husband shall complete all reasonable preparations necessary to ready  
8 the residence located at 1216 Newhall St., San Francisco, California 94124, for sale.
- 9 3) Mirna Tin of Real Estate Broker Firm Keller Williams Santa Clara Valley is hereby is appointed  
10 as the real estate broker to assist the parties in preparing, listing, marketing, and selling the  
11 Newhall residence.
- 12 4) Husband is ordered to fully cooperate with Ms. Tin regarding the home sale process, including  
13 following all reasonable recommendations related to preparing the home for sale and signing all  
14 documents necessary for the Newhall residence to be listed and sold within 48 hours of receipt of  
15 a request for signature on such documents.
- 16 5) If Husband fails to sign any documents necessary for the Newhall residence to be listed and sold,  
17 Wife may file an ex parte Request for Order asking the Court to appoint the Clerk of the Court or  
18 Clerk's Designee as elisor to sign any such documents. Wife shall attach to any such ex parte  
19 Request for Order a copy of the documents that require Husband's signature.
- 20 6) Effective immediately, both parties shall be CC'd on all communications with Ms. Tin.
- 21 7) The Court awards Wife \$3,000 in attorney's fees sanctions pursuant to Family Code section 271.  
22 The sanctions shall be paid from Husband's share of the net sale proceeds.
- 23 8) Once the Newhall residence is sold, the net proceeds of sale (after payment of the outstanding  
24 mortgage, closing costs, and real estate commission fees) shall be equally divided between the  
25 parties, except that Wife shall receive an additional \$3,000 from Husband's share of the net sale  
26 proceeds for the attorney's fees sanctions awarded above.
- 27 9) The Court will prepare the MC-053.
- 28 10) The Court will prepare the Findings and Order After Hearing.
- 29

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

JENNIFER JEAN PHILLIPS,

Petitioner

VS.

DAVID ERIC PHILLIPS-KERLEY,

Respondent

) Case Number: FDI-23-798937

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT; ORDER TO SHOW CAUSE AND  
AFFIDAVIT FOR CONTEMPT

**TENTATIVE RULING**

On the Court's own motion, the hearing on the Orders to Show Cause Re: Contempt filed 11/13/2025 and  
4/24/2026 is hereby continued to **Tuesday, 8/11/2026 at 9:00 AM in Dept. 404**, to join the hearing  
already set on that date on Respondent's Request for Order filed 6/26/2026 seeking to discharge many of  
the contempt counts.

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

NICCOLO FLORIANI,

Petitioner

VS.

CASEY FLORIANI,

Respondent

) Case Number: FDI-25-802058

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR SPOUSAL SUPPORT AND COMPELL FINANCIAL DISCLOSURES;  
REQUEST FOR ORDER: CHILD SUPPORT, SEEK WORK ORDER

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

**A. Procedural History**

- 1) Petitioner Niccolo Floriani (Father) and Respondent Casey Floriani (Mother) married on 5/3/2021 and separated on 9/3/2025, for a marriage of 4 years and 4 months. The parties have two minor children, Luca (DOB: 11/26/2021, age 4) and Matteo (DOB: 8/6/2023, age 2). Father is represented by attorney Constantine Zhukovsky. Mother is represented by attorney Zeena Alchokhachi.
- 2) Related Case No. FDV-25-818707
  - a. On 10/20/2025, Mother filed a Request for Domestic Violence Restraining Order seeking protection for herself and the parties' minor children against Father.
  - b. On 10/21/2025, the Court granted a Temporary Restraining Order protecting Mother and the parties' two children against Father, ordering Father to move-out of the parties' home, awarding Mother sole legal and physical custody of the parties' children, and ordering no visitation for Father.

- 1 c. On 11/20/2025, an Amended Temporary Restraining Order was entered which maintains  
2 the prior order and adds a requirement for Father to pay \$2,800 per month for rent for the  
3 former marital residence.
- 4 d. On 12/24/2025, the Court awarded to Father two hours per week of supervised visitation  
5 at Rally.
- 6 e. On 2/18/2026, the Court vacated the order requiring Father to pay the rent for the  
7 residence where Mother and the children reside because Father's mother financially  
8 supports Father and the Court found it could not order a third party to pay the rent for  
9 Mother's residence.
- 10 f. On 4/30/2026, following several days of trial, Judge Wiley took Mother's Request for a  
11 DVRO under submission. The submission remains pending.
- 12 g. There is a hearing currently set for Wednesday, 7/1/2026 at 8:30 AM to review the  
13 supervised visitation order.
- 14 h. There is a hearing currently set for Thursday, 7/9/2026 at 9:00 AM on Father's Order to  
15 Show Cause Re: Contempt.

16 3) Related Case No. FDV-25-818708

- 17 a. On 6/16/2026, in related Case No. FDV-25-818708 the Court granted Mother a two-year  
18 restraining order protecting Mother and the parties' two children against Father's mother  
19 (i.e., Mother's mother-in-law).

20 4) Father's Request for Order filed 2/10/2026

- 21 a. On for hearing is Father's Request for Order filed 2/10/2026 asking the Court to order  
22 Mother to serve her preliminary financial disclosures and to pay Father temporary  
23 guideline spousal support. Father also asks the Court to award sanctions to him under  
24 Family Code section 2107.
- 25 b. On 2/24/2026, Mother filed an Income and Expense Declaration. Mother states she is 33  
26 years old and works 38.5 hours per week as a preschool teacher. Mother states that she  
27 earns on average \$4,838 per month through her preschool teaching position and \$436 per  
28 month through "gig work through SF Sketchfest." Mother reports that her monthly  
29 expenses total \$8,454, which includes \$2,800 in rent and \$2,400 in childcare. Mother

1 states she has \$3,764 in cash savings and no other assets. Mother owes \$25,977 in credit  
2 card debt and \$40,000 in student loan debt.

3 c. On 2/24/2026, Mother filed a Declaration Regarding Service of Preliminary Declaration  
4 of Disclosure indicating that her preliminary financial disclosures were mailed to Father  
5 on 2/24/2026.

6 d. On 3/9/2026, Mother filed a Responsive Declaration. Mother states she served her  
7 preliminary financial disclosures on 2/24/2026 and that Father's request related to this  
8 issue is moot. Mother states she is currently facing eviction and cannot afford to pay  
9 sanctions. Mother states she cannot afford to pay any amount in spousal support to Father  
10 and so spousal support should be set at \$0. In the alternative, Mother asks the Court to  
11 impute Father with full-time minimum wage income, order Father to seek work, and  
12 award Mother child support. Mother states that during their marriage, Father's mother  
13 gave him \$5,000 per month for the family's expenses. Mother states these payments were  
14 a gift and contrary to Father's claim that he owes his mother \$238,778, there was never  
15 any discussion in their household about having to pay Father's mother back. Mother  
16 states that after she was granted a Temporary Restraining Order which required Father to  
17 vacate their home, Mother cannot afford the \$2,800 per month rent on her preschool  
18 teacher income of \$4,753 per month, which is why she and the parties' sons are being  
19 evicted. Mother also states she is going farther into debt each month. Mother states Father  
20 is fully capable of working even though he is deaf. Mother states Father was previously a  
21 chef and worked in a bakery in 2019. Mother also states Father took computer coding  
22 classes during their marriage and claimed at a hearing on 2/18/2026 that he is in a design  
23 training program.

24 e. On 3/20/2026, Mother filed a Statement of Support Calculations. Mother's proposed  
25 support calculation is based upon imputed wage income of \$2,770 per month to Father  
26 and \$2,000 per month in nontaxable gifts from Father's mother. Mother input a monthly  
27 salary of \$4,838 for herself. This results in guideline spousal support of \$0 and guideline  
28 child support of \$1,705 per month, payable by Father.

1 f. On 6/10/2026, Father filed an Income and Expense Declaration. Father states he is 39  
2 years old and has been unemployed since 2019. Father states he is “actively seeking  
3 employment.” Father states he has completed 3 years of college and he wrote “pending”  
4 next to “degree(s) obtained.” Father states he receives \$1,000 per month in income  
5 (source unspecified). Father also states that his monthly expenses total \$1,000 from rent  
6 and that this \$1,000 is “paid by others.” Father states he has \$0 in assets. Father lists no  
7 debts.

8 g. Father did not file a Reply Declaration to Mother’s Responsive Declaration.

9 5) Mother’s Request for Order filed 4/30/2026

10 a. Also on for hearing is Mother’s Request for Order filed 4/30/2026 seeking guideline  
11 child support and an order requiring Father to seek work.

12 b. On 6/10/2026, Father filed a Responsive Declaration stating that he would consent to a  
13 guideline child support order to commence “at start of [Father]’s employment.” Father  
14 also states that he consents to a “standard Seek Work order which is five applications per  
15 week and presenting his logs to Respondent’s attorney on the first day of each month.”  
16 Father states he is currently unemployed but is actively working on his architecture  
17 degree and expects to be completed within one year. Father states that his mother is  
18 currently assisting him financially by providing him with \$1,000 per month for rent and  
19 an additional \$1,000 per month for food. Father states that on 10/7/2025, Father’s mother  
20 informed the parties that a change in her financial circumstances would cause any  
21 financial support to the parties’ family to cease. Father states Mother currently resides  
22 with her boyfriend and his parents and she does not pay rent

23 c. On 6/25/2026, Mother filed a Reply Declaration. Mother states, “Petitioner is an  
24 unemployed adult with ordinary living expenses. He maintains a cellular phone, uses  
25 transportation, and has retained private legal counsel. It is not credible that he incurs no  
26 monthly expenses whatsoever while his mother only pays \$2,000 a month for his rent and  
27 food, which is what he states on his IED. The fact that his declaration reflects zero  
28 expenses indicates either that the declaration is inaccurate or that another person, likely  
29 his mother, is paying all of his living expenses on his behalf. I do not believe that \$2,000

1 covers ALL of his expenses for the month.” Mother states that to date Father has not  
2 provided any documentation to support his claim that he is enrolled in or attending any  
3 educational program, despite her request for this information through counsel. Mother  
4 also states that the fact that Father is enrolled in an educational program does not excuse  
5 him from maintaining employment. Mother reiterates her request that the Court impute  
6 Father with full-time minimum wage income. Mother states that she was recently evicted  
7 from her prior residence and she is currently living with her sister while she searches for  
8 affordable housing and housing assistance programs. Mother states, “A substantial  
9 portion of my income is devoted to maintaining medical, dental, and other insurance  
10 benefits for myself and our children so that they remain covered and receive necessary  
11 care. In addition, I continue to make payments on debts incurred during the marriage.  
12 Those monthly debt obligations recently increased from approximately \$500 per month  
13 to approximately \$1,000 per month.”

14 d. On 6/25/2026, Mother filed a second Statement of Support Calculations which contains a  
15 support calculation using the same inputs as used in her 3/20/2026 Statement of Support  
16 Calculations.

17 e. On 6/26/2026, Father filed a Declaration of Support Calculations. Father states that he is  
18 non-verbal and deaf. Father asks the Court to calculate support based on \$0 for Father.  
19 Father requests that support be awarded retroactively to 10/16/2025 when Father filed his  
20 Petition for Dissolution.

21 f. On 6/26/2026, Father filed a Memorandum of Points and Authorities supporting his  
22 request for support retroactive to the date he filed his Petition for Dissolution.

### 23 **B. Findings and Order**

- 24 1) The Court finds that Mother has already served her preliminary financial disclosures and that  
25 Father’s request for an order compelling her to do so is moot.
- 26 2) Father’s request for sanctions under Family Code section 2107 is denied. The Court finds that  
27 Mother cannot afford to pay any amount in sanctions to Father.
- 28 3) The Court finds good cause to grant Mother’s unopposed request to compel Father to seek work.  
29 Effectively immediately, Father shall abide by the attached Work Search Order.

1 4) Mother's request to impute Father with full-time minimum wage income is denied at this time.  
2 However, the Court will consider imputing Father with income at the next hearing date, as set  
3 forth below.

4 5) Father's request for temporary spousal support and child support retroactive to the date he filed  
5 his Petition for Dissolution is denied.

6 6) The Court was unable to finalize a guideline support calculation because Mother's Income and  
7 Expense Declaration filed 2/24/2026 lacks paystub attachments. However, as shown in the  
8 XSpouse calculation attached hereto and incorporated herein, if the Court were to accept Father's  
9 proposed XSpouse inputs for Mother, the Court finds that guideline child support would be \$770  
10 per month (payable by Father) and guideline temporary spousal support would be \$266 per month  
11 (payable by Mother).

12 7) Notwithstanding the foregoing, the Court finds good cause to award below guideline temporary  
13 spousal support and below guideline child support. The Court hereby sets temporary spousal  
14 support and child support at \$0 effective 2/10/2026 (the date Father filed his Request for Order)  
15 for the following reasons. Father is receiving \$2,000 per month in financial support from his  
16 mother. The Court finds that Father does not have the ability to pay any support to Mother at this  
17 time as \$1,000 per month of this amount is used to pay rent and \$1,000 per month of this amount  
18 is used to cover Father's personal expenses. Mother on the other hand, is making more than  
19 \$2,000 per month, but she has the children in her care 98% of the time and she is the children's  
20 sole financial provider. The Court finds that Mother does not have the ability to pay any amount  
21 in support to Father. The Court also notes Mother has alleged that Father committed domestic  
22 violence against her. Mother's Request for a DVRO against Father is still under submission. The  
23 Court makes no findings at this time regarding the domestic violence allegations for purposes of  
24 support. Depending upon the disposition of Mother's pending DVRO request, the Court will  
25 consider the applicability of Family Code section 4320(i) at the review hearing.

26 8) A review hearing is set for **Tuesday, 11/17/2026 at 9:00 AM in Dept. 404** to review Father's  
27 work search efforts and to consider making a new child and temporary spousal support order. The  
28 Court is inclined to impute to Father full-time minimum wage income at the next hearing date and  
29 to recalculate child and temporary spousal support. No later than 20 calendar days prior to the



1 next hearing date, both parties shall file and serve updated Income and Expense Declarations. No  
2 later than 10 calendar days prior to the next hearing date, both parties shall file and serve  
3 declarations providing any material updates to the Court as well as proposed Statements of  
4 Support Calculation. In their declarations, both parties must explain to the Court where they are  
5 currently living and how they are paying for their living expenses.

6 9) The Court will prepare the Findings and Order After Hearing.  
7  
8  
9  
10  
11  
12  
13  
14  
15  
16  
17  
18  
19  
20  
21  
22  
23  
24  
25  
26  
27  
28  
29

| Fixed Shares             | Father | Mother | Monthly figures     |      | Cash Flow                  | Guideline | Proposed |
|--------------------------|--------|--------|---------------------|------|----------------------------|-----------|----------|
| #of children             | 0      | 2      | 2026                |      |                            |           |          |
| % time with NCP          | 2.00 % | 0.00 % | GUIDELINE           |      | Comb. net spendable        | 5624      | 5624     |
| Filing status            | SINGLE | HH/MLA | Nets(adjusted)      |      | Percent change             | 0%        | 0%       |
| # exemptions             | 1 *    | 3 *    |                     |      | Father                     |           |          |
| Wages+salary             | 0      | 5338   | Father              | 2000 | Payment cost/benefit       | -504      | -504     |
| Self-employed income     | 0      | 0      | Mother              | 3624 | Net spendable income       | 1496      | 1496     |
| Other taxable income     | 0      | 436    | Total               | 5624 | Change from guideline      | 0         | 0        |
| TANF+CS received         | 0      | 0      | Support             |      | % of combined spendable    | 27%       | 27%      |
| Other nontaxable income  | 2000   | 0      | Addons              | 0    | % of saving over guideline | 0%        | 0%       |
| New spouse income        | 0      | 0      | Guideln CS          | -770 | Total taxes                | 0         | 0        |
| 401(k) employee contrib  | 0      | 260    | S.Clara SS          | 266  | Dep. exemption value       | 0         | 0        |
| Adjustments to income    | 0      | 0      | Total               | -504 | # withholding allowances   | 0         | 0        |
| SS paid prev marriage    | 0      | 0      | CS range: -526--770 |      | Net wage paycheck          | 0         | 0        |
| CS paid prev marriage    | 0      | 0      |                     |      | Mother                     |           |          |
| Health insurance         | 0      | 1563   |                     |      | Payment cost/benefit       | 504       | 504      |
| Other medical expense    | 0      | 165    |                     |      | Net spendable income       | 4128      | 4128     |
| Property tax expense     | 0      | 0      | Proposed            |      | Change from guideline      | 0         | 0        |
| Ded interest expense     | 0      | 0      | Tactic 9            |      | % of combined spendable    | 73%       | 73%      |
| Charitable contributions | 0      | 0      |                     |      | % of saving over guideline | 0%        | 0%       |
| Misc tax deductions      | 0      | 0      | CS                  | -770 | Total taxes                | 502       | 502      |
| Qual bus income ded      | 0      | 0      | SS                  | 266  | Dep. exemption value       | 0         | 0        |
| Required union dues      | 0      | 85     | Total               | -504 | # withholding allowances   | 0         | 0        |
| Mandatory retirement     | 0      | 0      | Saving              | 0    | Net wage paycheck          | 4068      | 4068     |
| Hardship deduction       | 0 *    | 0 *    | Releases            | 0    |                            |           |          |
| Other GDL deductions     | 0      | 0      |                     |      |                            |           |          |
| Child care expenses      | 0      | 0      |                     |      |                            |           |          |

Father pays Guideline CS, Proposed CS

Mother pays Guideline SS, Proposed SS

FC 4055 checking: ON

| Per Child Information | Timeshare | cce(F) | cce(M) | Addons | Payor  | Basic CS | Payor  | Pres CS | Payor  |
|-----------------------|-----------|--------|--------|--------|--------|----------|--------|---------|--------|
| All children          | 1 - 99    | 0      | 0      | 0      | Father | 770      | Father | 770     | Father |
|                       | 2 - 98    | 0      | 0      | 0      | Father | 288      | Father | 288     | Father |
|                       | 2 - 98    | 0      | 0      | 0      | Father | 482      | Father | 482     | Father |

|                                                                                                                                                                                          |                               |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------|
| ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, state bar number, and address):<br>Prepared by the Court<br><br><br><br><br>TELEPHONE NO.: FAX NO.:<br>E-MAIL ADDRESS:<br>ATTORNEY FOR (Name): | For court use only            |
| <b>Superior Court of California</b><br><b>County of San Francisco</b><br>400 McAllister Street<br>San Francisco, CA 94102                                                                |                               |
| Petitioner/Plaintiff:<br>Casey Noelle Nuckols Floriani<br>Respondent/Defendant:<br>Niccolo Toru Floriani<br>Other Parent:                                                                |                               |
| <b>WORK SEARCH ORDER</b>                                                                                                                                                                 | CASE NUMBER:<br>FDV-25-818707 |

1. ☐ Petitioner ☒ Respondent ☐ Other Parent is ordered to look for work, **and to:**
- ☒ spend a *minimum* of 25 **hours per week in job search related activities.**
- ☒ apply for a *minimum* of 5 **jobs per week.**
- ☐ No more than applications can be done online.
- ☐ Other conditions:

**You are responsible for** maintaining (1) a *written log* of your weekly activities (see local form: weekly search log) and (2) *copies* of all paperwork/correspondence related to your job search (letters, job applications sent, responses, contact information / business cards, etc.)

Activities should include *most or all* of the following:

- A. Networking with personal and professional contacts
- B. Interviewing for information, advice and job leads ("informational interviewing")
- C. Reviewing prior contacts and following up regularly
- D. Conducting computer research (company, industry, job/current openings)

Examples *include*:

- Company-specific websites
- *Google* searches for relevant industry information
- [www.monster.com](http://www.monster.com) / [www.craigslist.org](http://www.craigslist.org)
- E. Searching local newspaper job ads for relevant openings
- F. Responding to and following up on advertised job openings (online, in-person, newspaper)

- G. Job search-related communication (resume revision, cover letters, following up on job leads, e-mail communications, thank-you notes, etc.)
- H. Contacting/working with placement agencies
- I. Contacting/attending alumni groups
- J.. Attending career counseling / job coaching sessions
- K. Participating in job search clubs and/or job search skills training
- L. Participating in professional organizations
- M. Job skills training (computer/vocational classes relevant to job objective)
- N. Preparing for and attending job interviews
- O. Contacting a union, obtain placement on list, attend roll calls, and track placement on list.

2. You must serve a copy of the logs once per month and within the first 10 days of each month, starting 8/1/2026, to:

- ☒ Opposing counsel or party
- ☐ Department of Child Support Services (DCSS)  
617 Mission Street, San Francisco, CA 94102
- ☐

3. You must bring the signed, original weekly logs and all paperwork/correspondence related to your job search to court with you. Copies of all paperwork/correspondence related to your job search must be available for review if requested by opposing party within 10 days of request.

4. If you find work before the next court date, you must notify opposing party and counsel (if any) and (if checked) ☐ the Department of Child Support Services (DCSS), in writing *within ten days*, providing name, address, and telephone number of employer, salary or wage level, job title, copies of any employment contract, hiring letter, or employment agreement, and first month's paycheck stub upon receipt.

5. The court reserves jurisdiction to retroactively modify support to the earliest date permitted by law, and to impose sanctions for any failure to comply with this order, including imputing income.

☐ **SPOUSAL SUPPORT:** It is the goal of this state that each party will make reasonable good faith efforts to become self-supporting as provided in Family Code §4320. The failure to make reasonable good faith efforts may be one of the factors considered by the court as a basis for modifying or terminating spousal or partner support.

☐ The parties are ordered to return to court for review on \_\_\_\_\_, at \_\_\_\_\_, in Dept. \_\_\_\_\_.

Date: \_\_\_\_\_  
Judge/Commissioner

(This can be completed by hand or re-created in a word processing table or database spreadsheet)

NAME: Floriani v. Floriani      CASE # FDV - 25 - 818707      WEEK OF:

| DATE | ACTIVITY | Contact/Organization<br>(include name, title and phone number) | RESULTS | Follow Up Steps<br>(describe what you're going to do next and when) | Time Spent<br>(start/end time) |
|------|----------|----------------------------------------------------------------|---------|---------------------------------------------------------------------|--------------------------------|
|      |          |                                                                |         |                                                                     |                                |
|      |          |                                                                |         |                                                                     |                                |
|      |          |                                                                |         |                                                                     |                                |
|      |          |                                                                |         |                                                                     |                                |
|      |          |                                                                |         |                                                                     |                                |
|      |          |                                                                |         |                                                                     |                                |
|      |          |                                                                |         |                                                                     |                                |
|      |          |                                                                |         |                                                                     |                                |

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

(signature) \_\_\_\_\_ (date)

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

NIKITA BRACY,

Petitioner

VS.

JOHN JOSEPH,

Respondent

) Case Number: FDV-25-818755

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER TO SET ASIDE RESTRAINING ORDER AFTER HEARING FILED  
2/25/2026

**TENTATIVE RULING**

**As there is no indication in the record that Mother was served with a copy of the Tentative Ruling Instructions (as required by San Francisco Local Rule 11.7(D)(3)(a)) and because there is an active restraining order, the parties are ordered to appear in person or by Zoom. At the hearing, the Court intends to adopt the following as an order of the Court.. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.**

**A. Procedural History**

- 1) Petitioner Nikita Bracy (Mother) and Respondent John Joseph (Father) married on 5/5/2017 and separated on 1/31/2022, for a marriage of 4 years and 8 months. The parties have two minor children, Jeremiah (DOB: 4/25/2018, age 8) and JaNyah (DOB: 6/17/2020, age 6). The parties are self-represented.
- 2) On 11/10/2025, Mother filed a Request for Domestic Violence Restraining Order (DVRO) seeking protection for herself and the parties' two children against Father.

- 3) Following multiple continuances of the hearing date due to lack of service, on 2/25/2026, Mother filed a Proof of Service indicating that Father had been served with her moving papers as well as the Order on Request to Continue Hearing.
- 4) At the hearing on 2/25/2026, Mother appeared and Father did not. The Court entered a one-year Restraining Order After Hearing protecting Mother. The restraining order grants Mother sole legal and physical custody of the parties' children and orders no visitation for Father. The restraining order expires on 2/25/2027.
- 5) Now on for hearing is Father's Request for Order filed 5/4/2026. Father states he was not properly served with Mother's moving papers and asks the Court to set aside the restraining order.
- 6) Per the Proof of Service filed 6/2/2026, Father's Request for Order and related moving papers as well as a blank Responsive Declaration were personally served on Mother on 5/28/2026 by the Sherriff's Department.
- 7) Mother did not file a Responsive Declaration.

#### **B. Findings and Order**

- 1) The Court finds that this case has been assigned to the Honorable Judge Luna in Dept. 403 and this hearing was erroneously set in Dept. 404. On the Court's own motion, the hearing on Father's Request for Order filed 5/4/2026 is hereby continued to **Wednesday, 7/22/2026 at 8:30 AM in Dept. 403.**
- 2) The Court will prepare the Findings and Order After Hearing.